

October 18, 2016



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 13192
(THIRTEENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain hazardous materials in lab packs and non-bulk packages, and provides relief from segregation requirements and certain marking requirements subject to the packaging and safety measures prescribed herein. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. This revision supersedes all previously issued revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.301(c) in that the special permit number must be marked on each package, 173.12(b)(3) in that Division 6.1, Packing Group I materials are not authorized to be packaged in lab packs, 173.12(e)(1) in that Class 7 is not authorized, 173.25(a)(2) in that each overpack must be marked and labeled, and 176.84 in that certain hazardous materials must be segregated from each other in transportation, except as specified herein.

5. BASIS: This special permit is based on the application of Thomas Gray & Associates, Inc. dated October 20, 2015 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description ^{1,2}			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Cyanide materials capable of liberating hydrogen cyanide (HCN) when the material comes in contact with acid materials classed as Class or Division 3, 4.1, 4.2, 4.3, 5.1, 5.2, 6.1, 8, or 9, preceded by the word "Waste", if applicable	As appropriate	As appropriate	As appropriate

Note 1: Materials identified in § 173.12(b)(3) may not be transported under the terms of this special permit except for: Division 6.1 cyanides in Packing Group I.

Note 2: Only waste hazardous materials may be packaged in lab packs.

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Waste Cyanides - Waste cyanides, cyanide solutions or cyanide mixtures must be packaged in "Lab packs" as described in § 173.12(b)(2), containing no more than two kilograms(4.4 pounds) net weight per inner packaging, and no more than ten kilograms(22 pounds) net weight per outer packaging.

b. The transport vehicle may not contain any explosives or un-containerized hazardous materials in the same shipment. Only the following Class 7 materials are authorized on the same vehicle UN2910, UN2912, UN2915 and/or UN3321.

c. SEGREGATION: A horizontal buffer of at least 4 feet must be maintained for separation between incompatible hazardous materials. This buffer may be created by using other packages containing compatible hazardous materials or non-reactive freight or by other means of blocking and bracing the load. In addition, each package covered by this special permit must be transported on pallets or otherwise raised at least 4 inches off the vehicle floor.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Lab packs placed on pallets and secured to the pallet with shrink-wrap need not comply with § 173.25(a)(2) except that two labels representative of each Hazard Class or Division for the materials contained therein must be visibly displayed on opposing sides.

d. The marking requirements of § 172.301(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and cargo vessel.

10. MODAL REQUIREMENTS:

a. A current copy of this special permit must be carried aboard each motor vehicle and cargo vessel used to transport packages covered by this special permit.

b. Drivers and crew members must be instructed of the hazards involved in accidental mixing of cyanide with Class 8 acid materials.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous

materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Acting Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of the most recent revision of this special permit may be obtained by accessing the Office of Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

The most recent revision of this special permit supersedes all previous revision of this special permit. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: dl/SG